

MANILA LAW COLLEGE • JURIS DOCTOR PROGRAM

CONSTITUTIONAL LAW 1

Masterlist of Assigned Landmark Cases & Digest Titles — Paragraph Edition

★ MASTER CASE DIRECTORY — PARAGRAPH COMPENDIUM

Format: Paragraph Reading Edition (Non-Tabular Continuous Layout)

Course: Constitutional Law 1 (1987 Philippine Constitution)

Total Landmark Cases: 149 Assigned Supreme Court Decisions (Topics I to VII)

Each entry contains: Case Number, Complete Title, Official Citation, Promulgation Date, and Key Constitutional Doctrine / Principle.

Topic I: The Philippine Constitution

Subject Scope: Amendments, Revision, Ratification, Effectivity, and Judicial Review • 10 Assigned Cases

CASE 1. De Leon vs. Esguerra

Citation: 153 SCRA 602, No. L-78059, August 31, 1987

Key Legal Doctrine: Effectivity of the 1987 Constitution upon ratification on February 2, 1987 (Art. XVIII, Sec. 27); designation of barangay officials.

CASE 2. Lambino vs. COMELEC

Citation: G.R. No. 174153, October 25, 2006

Key Legal Doctrine: Difference between Amendment and Revision; Two-Part Test (Quantitative and Qualitative Test); People's Initiative requirements.

CASE 3. Imbong vs. COMELEC

Citation: 35 SCRA 28 (1970)

Key Legal Doctrine: Authority of Congress acting as a constituent assembly to call a Constitutional Convention (Art. XVII, Sec. 3).

CASE 4. Defensor-Santiago vs. COMELEC

Citation: G.R. No. 127325, March 19, 1997

Key Legal Doctrine: Inadequacy of RA 6735 for Constitutional Amendments via People's Initiative; 12%/3% registered voter requirements and 5-year bar.

CASE 5. Lambino vs. COMELEC (Resolution on MR)

Citation: G.R. No. 174153, November 21, 2006

Key Legal Doctrine: Affirmation of dismissal of People's Initiative petition; requirement of direct proposal by the people.

CASE 6. Gonzales vs. COMELEC

Citation: 21 SCRA 774 (1967)

Key Legal Doctrine: Submission of proposed constitutional amendments simultaneously with regular general elections is permissible.

CASE 7. Occeña vs. COMELEC

Citation: 104 SCRA 1 (1981)

Key Legal Doctrine: Adequacy of time for voters to study proposed constitutional amendments prior to plebiscite.

CASE 8. Almario vs. Alba

Citation: 127 SCRA 69 (1984)

Key Legal Doctrine: Doctrine of proper submission in constitutional plebiscites; voters' freedom of choice.

CASE 9. Tolentino vs. COMELEC

Citation: 41 SCRA 702 (1971)

Key Legal Doctrine: Doctrine of Proper Submission; prohibition against piecemeal ratification of constitutional revisions.

CASE 10. Javellana vs. Executive Secretary

Citation: 50 SCRA 30 (1973)

Key Legal Doctrine: Judicial review of constitutional amendments, political question doctrine, and validity of ratification via Citizens Assemblies.

Topic II: The Philippines as a State

Subject Scope: National Territory, Sovereignty, State Immunity, and Exceptions • 19 Assigned Cases

CASE 11. The Holy See vs. Rosario

Citation: 238 SCRA 524, December 1, 1994

Key Legal Doctrine: State Immunity of foreign sovereign states; distinction between acts jure imperii (sovereign) and jure gestionis (commercial).

CASE 12. Liang vs. People

Citation: G.R. No. 125865, January 28, 2000

Key Legal Doctrine: Immunity of international agency officials (Asian Development Bank); defamatory acts not covered by official acts immunity.

CASE 13. Arigo vs. Swift

Citation: G.R. No. 206501, September 16, 2014

Key Legal Doctrine: USS Guardian grounding on Tubbataha Reef; state immunity of foreign military commanders performing sovereign military functions; VFA application.

CASE 14. SEAFDEC vs. NLRC

Citation: 241 SCRA 580 (1995)

Key Legal Doctrine: Immunity of international organizations from labor jurisdiction and domestic tribunal processes.

CASE 15. Callado vs. IRRI

Citation: 244 SCRA 210 (1995)

Key Legal Doctrine: Immunity of International Rice Research Institute (IRRI) from local labor dispute proceedings pursuant to headquarters agreement.

CASE 16. DFA vs. NLRC

Citation: G.R. No. 113191, September 18, 1996

Key Legal Doctrine: Immunity of Asian Development Bank; DFA diplomatic certification is conclusive on courts.

CASE 17. Fontanilla vs. Maliaman

Citation: 194 SCRA 486 (1991)

Key Legal Doctrine: Immunity of incorporated government agencies; National Irrigation Administration (NIA) liable for torts when performing proprietary functions.

CASE 18. Farolan vs. CTA

Citation: 217 SCRA 298 (1993)

Key Legal Doctrine: Unincorporated government agencies performing purely governmental functions (Bureau of Customs) enjoy state immunity from damage suits.

CASE 19. China National Machinery & Equipment Corp. vs. Santamaria

Citation: G.R. No. 185572, February 7, 2012

Key Legal Doctrine: Commercial nature of Northrail contract excludes foreign government corporation from claiming sovereign immunity.

CASE 20. Civil Aeronautics Administration vs. CA

Citation: G.R. No. L-51806, November 8, 1968

Key Legal Doctrine: Operation of international airport is a proprietary function; CAA is suable for torts and damages resulting from airport maintenance.

CASE 21. Meritt vs. Government of the Philippine Islands

Citation: 34 Phil. 311, March 21, 1916

Key Legal Doctrine: Classic doctrine that statutory consent to be sued (suability) is not an admission of liability (liability).

CASE 22. Republic vs. Feliciano

Citation: 148 SCRA 424 (1987)

Key Legal Doctrine: Doctrine of non-suability of the State; necessity of express statutory authority to sue the Republic.

CASE 23. UP vs. Dizon

Citation: G.R. No. 171182, August 23, 2012

Key Legal Doctrine: Procedure for money claims against state universities; exclusive primary jurisdiction of the Commission on Audit (COA) under PD 1445.

CASE 24. City of Manila vs. Teotico

Citation: *G.R. No. L-23052, January 29, 1968*

Key Legal Doctrine: Liability of local governments for defective public works and streets under Article 2189 of the Civil Code as a special law.

CASE 25. USA vs. Ruiz

Citation: *136 SCRA 487 (1985)*

Key Legal Doctrine: Restrictive doctrine of state immunity; commercial contract for naval base wharf repair is proprietary in character.

CASE 26. Froilan vs. Pan Oriental Shipping

Citation: *G.R. No. L-6060, September 30, 1950*

Key Legal Doctrine: Implied waiver of state immunity when the government files a complaint against a private party, opening itself to counterclaims.

CASE 27. Municipality of San Miguel vs. Fernandez

Citation: *130 SCRA 56 (1984)*

Key Legal Doctrine: Consent to be sued does not include consent to execution; municipal and public funds are exempt from execution and garnishment.

CASE 28. Municipality of Makati vs. CA

Citation: *190 SCRA 206 (1990)*

Key Legal Doctrine: Garnishment of municipal funds is prohibited without prior legislative appropriation ordinance.

CASE 29. Wylie vs. Rarang

Citation: *209 SCRA 357 (1992)*

Key Legal Doctrine: State immunity cannot be used as a shield to perpetrate an injustice; public officers are personally liable for ultra vires and defamatory acts.

Topic III: The Fundamental Powers of the State

Subject Scope: Police Power, Eminent Domain (Just Compensation), and Taxation • 25 Assigned Cases

CASE 30. MMDA vs. Bel-Air Village Association, Inc.

Citation: *328 SCRA 836, March 27, 2000*

Key Legal Doctrine: Police power is inherently legislative; MMDA is an administrative coordinator and lacks delegated police power or ordinance-making powers.

CASE 31. PASEI vs. Drilon

Citation: *163 SCRA 386 (1988)*

Key Legal Doctrine: Valid exercise of police power in temporarily suspending the deployment of female domestic workers abroad for welfare protection.

CASE 32. Tio vs. Videogram Regulatory Board

Citation: *151 SCRA 208 (1987)*

Key Legal Doctrine: Interplay of police power and regulatory taxation over the videogram industry to curb piracy and promote public morals.

CASE 33. Acebedo Optical Company, Inc. vs. CA

Citation: 329 SCRA 314 (2000)

Key Legal Doctrine: Delegation of police power to city mayors; mayor cannot impose conditions beyond statutory professional regulations in issuing permits.

CASE 34. Taxicab Operators of MM vs. BOT

Citation: 117 SCRA 597 (1982)

Key Legal Doctrine: Phasing out of taxicabs older than 6 years in Metro Manila is a valid exercise of police power for commuter safety and pollution control.

CASE 35. Del Mar vs. PAGCOR

Citation: 346 SCRA 485 (2000)

Key Legal Doctrine: PAGCOR charter does not grant authority to operate or franchise jai-alai betting operations through private joint ventures.

CASE 36. Angeles University Foundation vs. City of Angeles

Citation: G.R. No. 189999, June 27, 2012

Key Legal Doctrine: Building permit fees are regulatory police power impositions, not taxes; non-stock educational institutions are not exempt from permit fees.

CASE 37. Southern Luzon Drug Corporation vs. DSWD

Citation: G.R. No. 199669, April 25, 2017

Key Legal Doctrine: The 20% Senior Citizen and PWD discount is a valid exercise of Police Power, not Eminent Domain; tax deduction is sufficient.

CASE 38. Republic vs. Salem Investment Corporation

Citation: G.R. No. 137569, June 23, 2000

Key Legal Doctrine: Requisites for valid eminent domain; necessity of establishing a genuine public use before private property is taken.

CASE 39. Estate of Salud Jimenez vs. PEZA

Citation: 349 SCRA 240, January 16, 2001

Key Legal Doctrine: Abandonment of public purpose in expropriation entitles previous landowner to reacquire the expropriated property.

CASE 40. MCIAA vs. Lozada, Jr.

Citation: G.R. No. 176625, February 25, 2010

Key Legal Doctrine: Right of former owners to repurchase expropriated airport lot upon abandonment of the airport expansion project.

CASE 41. Republic vs. Lim

Citation: G.R. No. 161656, June 29, 2005

Key Legal Doctrine: Non-payment of just compensation within 5 years from finality of expropriation judgment entitles owner to recover possession.

CASE 42. Heirs of Alberto Suguitan vs. City of Mandaluyong

Citation: 328 SCRA 137, March 14, 2000

Key Legal Doctrine: LGU expropriation under Section 19 of the Local Government Code requires an Ordinance enacted by the Sanggunian, not a mere resolution.

CASE 43. SMI Development Corporation vs. Republic

Citation: 323 SCRA 862, January 28, 2000

Key Legal Doctrine: Definiteness of public use in eminent domain; expropriation must serve a clearly specified public purpose.

CASE 44. Philippine Press Institute vs. COMELEC

Citation: G.R. No. 119694, May 22, 1995

Key Legal Doctrine: Compelling print media to provide free 'Comelec Space' constitutes taking of private property without just compensation.

CASE 45. TELEBAP, Inc. vs. COMELEC

Citation: 289 SCRA 337, April 21, 1998

Key Legal Doctrine: Requirement of free broadcast airtime for Comelec is a valid condition of public airwave franchises under police power.

CASE 46. Heirs of Juancho Ardonia vs. Reyes

Citation: 125 SCRA 220 (1983)

Key Legal Doctrine: Concept of public use in eminent domain encompasses tourism development, economic infrastructure, and social promotion.

CASE 47. OSG vs. Ayala Land Incorporated

Citation: G.R. No. 177056, September 18, 2009

Key Legal Doctrine: Prohibiting shopping malls from charging parking fees is an unconstitutional taking of private property without compensation.

CASE 48. Mosqueda vs. Pilipino Banana Growers & Exporters

Citation: G.R. No. 189185, August 16, 2016

Key Legal Doctrine: City ordinance banning aerial spraying is an unreasonable and oppressive police power measure violating due process and equal protection.

CASE 49. Secretary of DPWH vs. Spouses Tecson

Citation: G.R. No. 179334, April 21, 2015

Key Legal Doctrine: Determination of just compensation is based on the fair market value at the time of taking, plus legal interest until fully paid.

CASE 50. NPC vs. Heirs of Macabangkit Sangkay

Citation: 656 SCRA 60 (2011)

Key Legal Doctrine: Inverse condemnation; construction of underground hydroelectric tunnel without compensation is a taking; action does not prescribe.

CASE 51. EPZA (now PEZA) vs. Pulido

Citation: 656 SCRA 315 (2011)

Key Legal Doctrine: Application of the Doctrine of the Law of the Case in determining just compensation valuation.

CASE 52. Republic vs. Judge Mupas and PIATCO

Citation: G.R. No. 181892, September 8, 2015

Key Legal Doctrine: Valuation methodology in NAIA Terminal 3 expropriation; replacement cost method and depreciated structural value.

CASE 53. LBP vs. Dalauta

Citation: G.R. No. 190004, August 8, 2017

Key Legal Doctrine: Judicial determination of just compensation is an exclusive court power; DARAB administrative formulas serve as non-binding guidelines.

CASE 54. Alfonso vs. LBP and DAR

Citation: G.R. No. 181912, November 29, 2016

Key Legal Doctrine: Trial courts must consider statutory factors in RA 6657 and DAR formulas in judicially computing agrarian just compensation.

Topic IV: State Policies, Principles and General Considerations

Subject Scope: Republicanism, Separation of Powers, Ecology, Nationalist Provisions, Regalian Doctrine • 11 Assigned Cases

CASE 55. MMDA vs. Concerned Residents of Manila Bay

Citation: G.R. Nos. 171947-48, February 15, 2011

Key Legal Doctrine: Continuing Mandamus; separation of powers does not bar the Supreme Court from directing executive agencies to perform ministerial duties to clean Manila Bay.

CASE 56. Belgica vs. Ochoa, Jr.

Citation: G.R. No. 208566, November 19, 2013

Key Legal Doctrine: Unconstitutionality of the PDAF / Pork Barrel System; violation of separation of powers and non-delegation doctrine; Two Fundamental Tests of delegation.

CASE 57. Gonzales III vs. Office of the President

Citation: G.R. No. 196231, January 28, 2014

Key Legal Doctrine: Constitutional independence of the Office of the Ombudsman; President cannot administratively discipline the Deputy Ombudsman.

CASE 58. Garcia vs. Executive Secretary

Citation: G.R. No. 198554, July 30, 2012

Key Legal Doctrine: Civilian supremacy over the military (Art. II, Sec. 3); President's power to create fact-finding and truth commissions.

CASE 59. Oposa vs. Factoran, Jr.

Citation: 224 SCRA 792 (1993)

Key Legal Doctrine: Intergenerational responsibility; the right to a balanced and healthful ecology (Art. II, Sec. 16) is self-executing and confers legal standing on minors.

CASE 60. Cadet 1CL Cudia vs. Superintendent of PMA

Citation: G.R. No. 211362, February 24, 2015

Key Legal Doctrine: Academic freedom of military institutions includes the right to dismiss cadets who violate the Honor Code, provided minimum due process is observed.

CASE 61. Behest Loans Committee vs. Desierto

Citation: G.R. No. 130140, October 25, 1999

Key Legal Doctrine: State right to recover ill-gotten wealth under Art. XI, Sec. 15; prescription for behest loans starts from discovery by investigative committee.

CASE 62. Isagani Cruz vs. Secretary of DENR

Citation: G.R. No. 135385, December 6, 2000

Key Legal Doctrine: Regalian Doctrine (Art. XII, Sec. 2) vs Indigenous Peoples' Rights Act (IPRA / RA 8371); recognition of ancestral domain ownership.

CASE 63. Resident Marine Mammals vs. Sec. Angelo Reyes

Citation: G.R. No. 180771, April 21, 2015

Key Legal Doctrine: Legal standing of human stewards on behalf of cetacean species; unconstitutionality of Service Contract No. 46 in Tañon Strait protected seascape.

CASE 64. Roy III vs. Chairperson Herbosa

Citation: G.R. No. 207246, November 22, 2016

Key Legal Doctrine: The 60-40 Filipino ownership rule for public utilities (Art. XII, Sec. 11) applies separately to both voting shares and beneficial ownership.

CASE 65. PNOC vs. Keppel Philippines Holdings, Inc.

Citation: G.R. No. 202050, July 25, 2016

Key Legal Doctrine: Constitutional prohibition against foreign acquisition of private lands (Art. XII, Sec. 7); option contracts granting land purchase to foreign corporations are void.

Topic V: Legislative Department

Subject Scope: Bicameral Congress, Privileges, Disqualifications, Inquiries, Impeachment, and Legislative Veto • 27 Assigned Cases

CASE 66. Lagman vs. Executive Secretary

Citation: G.R. No. 231658, July 4, 2017

Key Legal Doctrine: Delegated emergency powers; martial law proclamation in Mindanao; separate vs joint review powers of Congress and the Supreme Court.

CASE 67. Trillanes IV vs. Hon. Oscar Pimentel, Sr.

Citation: G.R. No. 179817, June 27, 2008

Key Legal Doctrine: Election to the Senate does not confer immunity from criminal detention for coup d'état; legislative work cannot be performed inside prison.

CASE 68. Aquino vs. COMELEC

Citation: G.R. No. 189793, April 7, 2010

Key Legal Doctrine: Constitutional apportionment of legislative districts; the 250,000 population requirement applies to cities, not to whole provinces.

CASE 69. Bagabuyo vs. COMELEC

Citation: G.R. No. 176970, December 8, 2008

Key Legal Doctrine: Reapportionment of legislative districts via statute does not require a plebiscite under Article X, Section 10.

CASE 70. Sema vs. COMELEC

Citation: G.R. No. 177597, July 16, 2008

Key Legal Doctrine: Power to create legislative districts belongs exclusively to the national Congress; ARMM regional assembly cannot create provinces or districts.

CASE 71. People vs. Jalosjos

Citation: 324 SCRA 689, February 3, 2000

Key Legal Doctrine: Parliamentary immunity from arrest (Art. VI, Sec. 11) is unavailable for offenses punishable by more than 6 years imprisonment.

CASE 72. Osmeña vs. Pendatun

Citation: 109 Phil. 863 (1960)

Key Legal Doctrine: Speech and debate clause protects legislators from external liability, but the House retains inherent disciplinary power to suspend its members.

CASE 73. Pobre vs. Santiago

Citation: A.C. No. 7399, August 25, 2009

Key Legal Doctrine: Absolute parliamentary immunity of Senators for speeches delivered on the Senate floor bars disciplinary disbarment proceedings.

CASE 74. Liban vs. Gordon

Citation: G.R. No. 175352, July 15, 2009 / Jan 18, 2011

Key Legal Doctrine: Incompatible offices under Art. VI, Sec. 13; holding the office of Philippine Red Cross Chairman does not forfeit Senate seat.

CASE 75. Baguilat vs. Speaker Alvarez

Citation: G.R. No. 227757, July 25, 2017

Key Legal Doctrine: Internal election of House officers and recognition of Minority Leader is a non-justiciable political question.

CASE 76. Pimentel vs. HRET

Citation: 393 SCRA 227 (2002)

Key Legal Doctrine: Independence and constitutional composition of the House of Representatives Electoral Tribunal (HRET).

CASE 77. Vilando vs. HRET

Citation: 656 SCRA 17 (2011)

Key Legal Doctrine: Exclusive jurisdiction of HRET over election, returns, and qualifications of House members.

CASE 78. Reyes vs. COMELEC

Citation: G.R. No. 207264, June 25, 2013

Key Legal Doctrine: Jurisdiction transition from COMELEC to HRET requires three requisites: valid proclamation, proper oath, and assumption of office.

CASE 79. Velasco vs. Speaker Belmonte

Citation: G.R. No. 211140, January 12, 2016

Key Legal Doctrine: Ministerial duty of the House Speaker to administer oath to the candidate conclusively declared winner by final Supreme Court judgment.

CASE 80. Abayon vs. COMELEC

Citation: G.R. No. 189434, February 11, 2010

Key Legal Doctrine: HRET has exclusive jurisdiction over qualifications and election disputes involving Party-List representatives once proclaimed and seated.

CASE 81. ABAKADA Guro vs. Purisima

Citation: G.R. No. 166715, August 14, 2008

Key Legal Doctrine: Three kinds of legislative oversight: scrutiny, investigation, and supervision; unconstitutionality of legislative veto post-enactment.

CASE 82. Garcilliano vs. House of Representatives

Citation: G.R. No. 170338, December 23, 2008

Key Legal Doctrine: Power of legislative inquiry (Art. VI, Sec. 21) requires publication of inquiry rules of procedure in newspapers of general circulation or Official Gazette.

CASE 83. Senate of the Philippines vs. Ermita

Citation: G.R. No. 169777, April 20, 2006

Key Legal Doctrine: Unconstitutionality of EO 464; Executive Privilege cannot be invoked as a blanket ban preventing cabinet officials from attending inquiries.

CASE 84. Neri vs. Senate

Citation: G.R. No. 180643, September 5, 2008

Key Legal Doctrine: Elements of Presidential Communications Privilege: relation to quintessential presidential power, authored by close advisors, valid claim.

CASE 85. AKBAYAN vs. Thomas Aquino

Citation: *G.R. No. 170516, July 16, 2008*

Key Legal Doctrine: Executive privilege over diplomatic and treaty negotiations (JPEPA) during pendency of international treaty formulation.

CASE 86. Gudani vs. Senga

Citation: *G.R. No. 170561, August 15, 2006*

Key Legal Doctrine: President as Commander-in-Chief may order military officers not to testify before legislative inquiries without prior presidential clearance.

CASE 87. Arnault vs. Nazareno

Citation: *G.R. No. L-3820, July 18, 1950*

Key Legal Doctrine: Inherent power of Congress to punish recalcitrant witnesses for contempt and commit them to prison until they answer proper inquiries.

CASE 88. NORECO vs. Sangguniang Panlungsod of Dumaguete

Citation: *155 SCRA 421 (1987)*

Key Legal Doctrine: Local legislative councils (Sanggunian) do not possess inherent power to punish for contempt in the absence of express statutory grant.

CASE 89. David vs. Macapagal-Arroyo

Citation: *G.R. No. 171396, May 3, 2006*

Key Legal Doctrine: Presidential immunity from suit during incumbency; President cannot be sued in court while holding office, but remains subject to impeachment.

CASE 90. Lecaroz vs. Sandiganbayan

Citation: *128 SCRA 324 (1984)*

Key Legal Doctrine: Impeachable officers cannot be charged criminally before the Sandiganbayan for offenses warranting removal until removed via impeachment.

CASE 91. RE: EM No. 03-010 (COMELEC Order)

Citation: *A.M. No. 03-8-22-SC, September 16, 2003*

Key Legal Doctrine: Exclusivity of impeachment mechanism for constitutional commissioners; disciplinary jurisdiction.

CASE 92. Republic vs. Sereno

Citation: *G.R. No. 237428, June 19, 2018*

Key Legal Doctrine: Quo warranto against an impeachable officer for lack of constitutional qualifications and integrity is legally distinct from impeachment.

Topic VI: Executive Department

CASE 93. Estrada vs. Desierto

Citation: G.R. Nos. 146710-15, March 2, 2001

Key Legal Doctrine: Constructive resignation of the President; permanent vacancy under Art. VII, Sec. 8; totality of prior, contemporaneous, and subsequent acts.

CASE 94. Civil Liberties Union vs. Executive Secretary

Citation: 194 SCRA 317 (1991)

Key Legal Doctrine: Article VII, Section 13 imposes a strict prohibition on Cabinet members holding multiple appointive offices, stricter than Article IX-B.

CASE 95. Clarificatory Resolution in CLU & Anti-Graft League vs. Juico

Citation: G.R. No. 83896, August 1, 1991

Key Legal Doctrine: Ex-officio positions closely related to primary department functions and uncompensated are exempt from multiple office ban.

CASE 96. Public Interest Center Inc. vs. Elma

Citation: G.R. No. 138965, June 30, 2006

Key Legal Doctrine: Holding concurrent offices of Chief Presidential Legal Counsel and PCGG Chairman violates the constitutional ban on multiple offices.

CASE 97. Soliven vs. Makasiar / Beltran vs. Makasiar

Citation: 167 SCRA 393 (1988)

Key Legal Doctrine: Presidential immunity is a personal privilege of the President and does not prevent the President from initiating criminal libel complaints.

CASE 98. Marcos vs. Manglapus

Citation: 177 SCRA 668 (1989)

Key Legal Doctrine: Residual executive power of the President under Art. VII, Sec. 1 to protect peace and order and prevent entry of destabilizing former dictator.

CASE 99. Ocampo vs. Rear Admiral Enriquez

Citation: G.R. No. 225973, November 8, 2016

Key Legal Doctrine: Presidential discretion under executive control powers to allow burial of former President Marcos at Libingan ng mga Bayani.

CASE 100. PSALM vs. Commissioner of Internal Revenue

Citation: G.R. No. 198146, August 8, 2017

Key Legal Doctrine: Presidential power of control over government corporations; mandatory administrative settlement of disputes between state agencies.

CASE 101. Ganzon vs. CA

Citation: 200 SCRA 271 (1991)

Key Legal Doctrine: General supervision over local government units under Art. X, Sec. 4 does not include control; Secretary cannot arbitrarily suspend elected mayors.

CASE 102. Lacson vs. Romero

Citation: 84 Phil. 740 (1949)

Key Legal Doctrine: Four stages of appointing process: nomination, confirmation, issuance of commission, and acceptance by the appointee.

CASE 103. Aguinaldo vs. President Aquino III

Citation: G.R. No. 224302, November 29, 2016

Key Legal Doctrine: Presidential appointment power from JBC shortlists; clustering of nominees for multiple Sandiganbayan vacancies is unconstitutional.

CASE 104. In Re: Valenzuela and Vallarta

Citation: 298 SCRA 408, November 9, 1998

Key Legal Doctrine: Prohibition on midnight appointments under Art. VII, Sec. 15 applies to appointments in the Judiciary.

CASE 105. Atty. Velicaria-Garafil vs. Office of the President

Citation: G.R. No. 203372, June 16, 2015

Key Legal Doctrine: Requisites of midnight appointment; validity of Executive Order No. 2 revoking midnight appointments lacking complete transmission.

CASE 106. De Castro vs. JBC

Citation: G.R. No. 191002, April 20, 2010

Key Legal Doctrine: The constitutional ban on midnight appointments (Art. VII, Sec. 15) does not apply to appointments to the Supreme Court (Art. VIII, Sec. 4[1]).

CASE 107. De Rama vs. CA

Citation: 353 SCRA 94, February 28, 2001

Key Legal Doctrine: Appointments made prior to the commencement of the election ban period are valid and do not constitute midnight appointments.

CASE 108. Funa vs. COA Chair

Citation: G.R. No. 192791, April 24, 2012

Key Legal Doctrine: Prohibition on promotional appointment of an incumbent Commissioner to the office of COA Chairman for a fresh 7-year term.

CASE 109. Kulayan vs. Tan

Citation: G.R. No. 187298, July 3, 2012

Key Legal Doctrine: Calling out powers under Commander-in-Chief clause belong exclusively to the President; provincial governors cannot call out the AFP.

CASE 110. IBP vs. Zamora

Citation: G.R. No. 141284, August 15, 2000

Key Legal Doctrine: Judicial review of the factual basis of calling out the armed forces to assist the Philippine National Police in joint visibility patrols.

CASE 111. Padilla vs. Congress of the Philippines

Citation: G.R. No. 231671, July 25, 2017

Key Legal Doctrine: Congress is not required to convene in joint session to approve martial law unless it intends to revoke or extend the proclamation.

CASE 112. Olaguez vs. Military Commission No. 34

Citation: 150 SCRA 144 (1987)

Key Legal Doctrine: Open Court Doctrine; military tribunals have no jurisdiction over civilians when civil courts are functioning under martial law.

CASE 113. Macapagal-Arroyo vs. People

Citation: G.R. No. 220598, July 19, 2016

Key Legal Doctrine: Doctrine of Command Responsibility applies in armed conflict/IHL, but does not substitute for proof of overt acts in plunder prosecutions.

CASE 114. Monsanto vs. Factoran

Citation: 170 SCRA 190 (1989)

Key Legal Doctrine: Absolute pardon relieves penalty but does not erase guilt or automatically restore an employee to public office without fresh appointment.

CASE 115. Garcia vs. Chairman

Citation: G.R. No. 75025, September 14, 1993

Key Legal Doctrine: Executive clemency by the President and eligibility for reinstatement to civil service without back salaries.

CASE 116. In Re: Wilfredo Sumulong Torres

Citation: 251 SCRA 709, December 29, 1995

Key Legal Doctrine: Violation of the terms of a conditional pardon authorizes the President to order the immediate rearrest and recommitment of the convict.

CASE 117. PHILCONSA vs. Enriquez

Citation: 235 SCRA 506, August 9, 1994

Key Legal Doctrine: Power of impoundment; executive refusal to spend appropriated funds requires express statutory authority and guidelines.

CASE 118. Araullo vs. Aquino (DAP Case)

Citation: G.R. No. 209287, February 3, 2015

Key Legal Doctrine: Unconstitutionality of Disbursement Acceleration Program (DAP) cross-border transfers and pooling of unobligated funds under Art. VI, Sec. 25(5).

Topic VII: Judicial Department

Subject Scope: Judicial Power, Requisites of Judicial Review, Safeguards of Independence, The Supreme Court, and JBC • 31 Assigned Cases

CASE 119. Garcia vs. Drilon

Citation: 699 SCRA 352 (2013)

Key Legal Doctrine: Expanded judicial power under Art. VIII, Sec. 1 to correct grave abuse of discretion; constitutionality of Anti-VAWC Act (RA 9262).

CASE 120. Vinuya vs. Executive Secretary

Citation: G.R. No. 162230, April 28, 2010

Key Legal Doctrine: Political Question Doctrine; executive discretion in foreign affairs regarding diplomatic claims of Filipino comfort women against Japan.

CASE 121. Save the SC Judicial Independence Movement vs. Abolition of JDF

Citation: UDK-15143, January 21, 2015

Key Legal Doctrine: Actual case or controversy requisite; premature challenge against proposed legislative bill abolishing the Judiciary Development Fund.

CASE 122. ISAAA vs. Greenpeace Southeast Asia

Citation: G.R. No. 209271, July 26, 2016

Key Legal Doctrine: Moot and academic doctrine exceptions: capable of repetition yet evading review and paramount public interest (Bt talong field trials).

CASE 123. Southwing Heavy Industries, Inc. vs. Executive Secretary

Citation: G.R. No. 164171, February 20, 2006

Key Legal Doctrine: Direct injury test for legal standing (locus standi); validity of Executive Order No. 156 banning importation of used motor vehicles.

CASE 124. Saguisag vs. Executive Secretary Ochoa

Citation: G.R. No. 212426, January 12, 2016

Key Legal Doctrine: Legislator's standing to challenge the Enhanced Defense Cooperation Agreement (EDCA) as an executive agreement vs treaty.

CASE 125. West Tower Condominium Corp. vs. FPIC

Citation: G.R. No. 194239, June 16, 2015

Key Legal Doctrine: Writ of Kalikasan; legal standing of condominium corporation and residents to sue for pipeline oil leaks affecting public health and safety.

CASE 126. Segovia vs. The Climate Change Commission

Citation: G.R. No. 211010, March 7, 2017

Key Legal Doctrine: Writ of Kalikasan vs Writ of Continuing Mandamus; Road Sharing Principle and lack of specific ministerial duty to partition roadways.

CASE 127. Southern Hemisphere Engagement Network vs. ATC

Citation: 632 SCRA 146 (2010)

Key Legal Doctrine: Prohibition against third-party standing; facial challenge on overbreadth and vagueness is permissible only in free speech, not penal laws.

CASE 128. Disini, Jr. vs. Secretary of Justice

Citation: G.R. No. 203335, February 18, 2014

Key Legal Doctrine: Facial challenge against provisions of the Cybercrime Prevention Act of 2012 (RA 10175); void for vagueness and overbreadth in online libel.

CASE 129. Imbong vs. Ochoa

Citation: G.R. No. 204819, April 8, 2014

Key Legal Doctrine: Facial challenge against the Reproductive Health Law (RA 10354); protection of the life of the unborn from conception under Art. II, Sec. 12.

CASE 130. SPARK vs. Quezon City

Citation: G.R. No. 225442, August 8, 2017

Key Legal Doctrine: Facial challenge against city curfew ordinances for minors; application of strict scrutiny test to protect freedom of movement and assembly.

CASE 131. Lalican vs. Vergara

Citation: 276 SCRA 518 (1997)

Key Legal Doctrine: The 'lis mota' of the case; courts will not pass upon a constitutional question if the case can be disposed of on other legal grounds.

CASE 132. Drilon vs. Lim

Citation: G.R. No. 112497, August 4, 1994

Key Legal Doctrine: Doctrine of Purposeful Hesitation; courts proceed with caution before striking down statutes or ordinances as unconstitutional.

CASE 133. Republic vs. CA

Citation: G.R. No. 79732, November 8, 1993

Key Legal Doctrine: Doctrine of Operative Fact; recognizing the legal consequences and rights accrued under a statute prior to its judicial declaration of invalidity.

CASE 134. Re: COA Opinion on Appraised Value of Retired Justices' Properties

Citation: A.M. No. 11-7-10-SC, July 31, 2012

Key Legal Doctrine: Fiscal Autonomy of the Judiciary under Art. VIII, Sec. 3; COA cannot audit or interfere with Supreme Court constitutional fiscal prerogatives.

CASE 135. In Re First Indorsement from Hon. Raul M. Gonzalez

Citation: A.M. No. 88-4-5433, April 15, 1988

Key Legal Doctrine: Independence of Supreme Court Justices; Tanodbayan/Ombudsman has no jurisdiction to investigate incumbent Justices for judicial acts.

CASE 136. Maceda vs. Vasquez

Citation: 221 SCRA 464 (1993)

Key Legal Doctrine: Ombudsman must refer criminal and administrative complaints against judges arising from judicial duties to the Supreme Court for determination.

CASE 137. De Vera vs. Pelayo

Citation: 335 SCRA 281, July 6, 2000

Key Legal Doctrine: Administrative supervision over all courts and court personnel is the exclusive constitutional prerogative of the Supreme Court.

CASE 138. Ampong vs. CSC

Citation: G.R. No. 167916, August 26, 2008

Key Legal Doctrine: Civil Service Commission has no authority to investigate or discipline court personnel without Supreme Court clearance.

CASE 139. Carpio-Morales vs. CA & Binay

Citation: G.R. Nos. 217126-27, November 10, 2015

Key Legal Doctrine: Abandonment of the Condonation / Aguinaldo Doctrine; unconstitutionality of Section 14, par. 2 of RA 6770 restricting court injunctions.

CASE 140. Estipona vs. Lobrigo

Citation: G.R. No. 226679, August 15, 2017

Key Legal Doctrine: Exclusive rule-making power of the Supreme Court under Art. VIII, Sec. 5(5); Section 23 of RA 9165 banning plea bargaining in drug cases is unconstitutional.

CASE 141. Mamiscal vs. Clerk of Court Abdullah

Citation: A.M. No. SCC-13-18-J, July 1, 2015

Key Legal Doctrine: Sole disciplinary authority of the Supreme Court over personnel of Shari'a Courts.

CASE 142. SM Land vs. BCDA

Citation: G.R. No. 203655, September 7, 2015

Key Legal Doctrine: Supreme Court En Banc voting, quorum, and modification of established doctrinal pronouncements.

CASE 143. Sesbreño vs. CA

Citation: G.R. No. 161390, April 16, 2008

Key Legal Doctrine: Constitutional period to decide cases under Art. VIII, Sec. 15; directory nature of periods for lower courts without prejudice to administrative liability.

CASE 144. Re: Problem of Delays in Cases Before Sandiganbayan

Citation: A.M. No. 00-8-05-SC, November 28, 2001

Key Legal Doctrine: Constitutional duty to observe statutory and constitutional deadlines in rendering judicial decisions.

CASE 145. Re: Report on Judicial Audit in RTC Br. 56 Mandaue

Citation: A.M. No. 09-7-284-RTC, February 16, 2011

Key Legal Doctrine: Sanctions for gross inefficiency and failure to decide cases within the constitutional period.

CASE 146. Chavez vs. JBC

Citation: G.R. No. 202242, April 16, 2013

Key Legal Doctrine: Constitutional composition of the Judicial and Bar Council under Art. VIII, Sec. 8; Congress is entitled to only one representative with one vote.

CASE 147. Jardeleza vs. Chief Justice Sereno

Citation: G.R. No. 213181, August 19, 2014

Key Legal Doctrine: Due process in JBC proceedings; invocation of JBC Rule 10, Sec. 2 on integrity challenges requires notice and opportunity to explain.

CASE 148. Umali vs. JBC

Citation: G.R. No. 228628, July 25, 2017

Key Legal Doctrine: Reiteration of Chavez doctrine; half-vote arrangement between Senate and House representatives in JBC is constitutionally permissible.

CASE 149. Judge Villanueva vs. JBC

Citation: G.R. No. 211833, April 7, 2015

Key Legal Doctrine: JBC policy requiring 5 years service for first-level judges before promotion to second-level courts is a valid exercise of rule-making discretion.